



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing seven judgments on Tuesday 23 January 2018 and 14 judgments and / or decisions on Thursday 25 January 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 23 January 2018

[Faludy-Kovács v. Hungary \(application no. 20487/13\)](#)

The applicant, Katalin Fatime Faludy-Kovács, is a Hungarian national who was born in 1975 and lives in Budapest.

The case concerns her complaint that the Hungarian courts refused to award her compensation for damage to her reputation after she brought legal action over a newspaper headline.

In 2008 a newspaper published an article about the applicant, the widow of György Faludy, who was a well-known poet, and her family plans, which involved other relatives of her late husband. She began court proceedings over the headline, which said "Trampling on the memory of Faludy. The widow does everything for the limelight". Her damages claim was rejected in 2011 by the court of appeal, which found that the statement was a value judgment and not a statement of fact.

In her complaint she relies on Article 8 (right to respect for private and family life) of the European Convention on Human Rights.

[Magyar Kétfarkú Kutya Párt v. Hungary \(no. 201/17\)](#)

The applicant, Magyar Kétfarkú Kutya Párt, is a political party registered in Budapest (Hungary).

The case concerns the party's complaint about domestic court findings that a mobile telephone application it developed to allow voters to show and comment on invalid ballots cast during a 2016 referendum on European Union migrant relocation plans broke election rules.

Voters could use the app to post anonymous photographs of invalid ballot papers and comments on reasons for how they cast their ballots. Following a complaint by a private individual, the National Election Commission fined the party after finding that the app broke rules on fair elections, voting secrecy and the proper exercise of rights.

The *Kúria* ultimately only upheld the decision on the proper exercise of rights and reduced the fine. A complaint to the Constitutional Court was deemed inadmissible.

The applicant party complains under Article 10 (right to freedom of expression).

[Kuchta v. Poland \(no. 58683/08\)](#)

The applicant, Arkadiusz Kuchta, is a Polish national who was born in 1975 and lives in Barczewo (Poland).

The case concerns criminal proceedings leading to Mr Kuchta's conviction for complicity in the use of forgeries.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial / right to the examination of witnesses for the prosecution), Mr Kuchta complains that the trial court did not allow his defence to put questions to one of his co-defendants, whose statements were, according to him, the main evidence used for his conviction.

[Akarsubaşı and Alçiçek v. Turkey \(no. 19620/12\)](#)

The applicants, Mehmet Akarsubaşı and Yalçın Alçiçek, are Turkish nationals who were born in 1967. They are civil servants and members of the local branch of *Eğitim-Sen (Eğitim ve Bilim Emekçiler Sendikası)*, a trade union for education and science).

The case concerns the fining of Mr Akarsubaşı and Mr Alçiçek for hanging a strike notice on the outside wall of a secondary school indicating “Workplace on Strike”, on a day of national mobilisation organised in December 2011.

Relying on Articles 10 (freedom of expression) and 11 (freedom of assembly and association), the applicants allege that the fines breached their rights to freedom of expression and freedom of assembly.

[Güç v. Turkey \(no. 15374/11\)](#)

The applicant, Yaşar Güç, is a Turkish national who was born in 1960 and lives in Giresun (Turkey).

The case concerns his complaint about his dismissal from the civil service after the alleged harassment of a nine-year-old school girl in 2006. He was working at the time as a caretaker at an education centre.

In 2008 he was acquitted of sexual offence charges related to the incident. In the meantime, he had been dismissed from his job for harassment, a decision which the Supreme Administrative Court ultimately upheld in 2009, without any mention of the acquittal.

Relying on Article 6 § 2 (presumption of innocence), Mr Güç complains about his dismissal and the reasoning employed by the administrative courts when reviewing that decision.

[İzzet Çelik v. Turkey \(no. 15185/05\)](#)

The applicant, İzzet Çelik, is a Turkish national who was born in 1979 and lives in Kırıkkale (Turkey).

The case concerns Mr Çelik’s complaint about the fairness of his 2002 conviction and jail sentence for involvement in separatist activities.

Mr Çelik was arrested in 1998 and detained on suspicion of being a member of an illegal organisation. He was subsequently charged with involvement in separatist activities and in 2002 he was convicted by the Istanbul State Security Court and sentenced to 30 years’ imprisonment. The judgment was upheld by the Court of Cassation in 2003.

He relies on Article 6 § 1 (right to a fair hearing within a reasonable time, independence and impartiality of the state security court), Article 6 § 3 (c) (right to legal assistance) and Article 5 (right to liberty and security). He complains in particular about the presence of a military judge in some early hearings and a lack of access to legal representation during the preliminary investigation.

[Seven v. Turkey \(no. 60392/08\)](#)

The applicant, Hamit Seven, is a Turkish national who was born in 1962 and lives in Ankara (Turkey).

The case concerns his dismissal from the police force after a rape allegation, although he was cleared of all charges.

In 2002, while working as a chief police officer in Ankara, he was accused of rape and abuse of authority. Disciplinary and criminal proceedings were begun simultaneously. He was acquitted by

the Ankara Assize Court in 2005. By that time, however, he had been dismissed from the police force. A 2006 appeal review by the Supreme Administrative Court refused to annul his dismissal.

Relying on Article 6 § 2 (right to presumption of innocence), Mr Seven complains about being dismissed while the criminal proceedings were still going on and about the administrative courts' refusal to cancel that decision once he had been cleared of the charges.

Thursday 25 January 2018

[Chorbov v. Bulgaria \(no. 39942/13\)](#)

The applicant, Georgi Chorbov, is a Bulgarian national who was born in 1950 and lives in Sofia.

The case concerns his complaint that the Bulgarian Ministry of Agriculture and Forests failed to pay him his entire fee for legal work after he represented the Ministry at the International Court of Arbitration in Paris in 2005.

Mr Chorbov had an enforcement writ issued against the Ministry in February 2006 and again requested payment in 2011 and 2013, but the Ministry did not pay. It in turn took Mr Chorbov to court in 2006 for failing to carry out his duties under the legal services contract. Its claims for damages were rejected, but Mr Chorbov was ordered in 2010 to pay a smaller penalty fee.

Mr Chorbov relies on Article 1 of Protocol No. 1 (protection of property) and Article 13 (right to an effective remedy).

[Milić and Others v. Croatia \(no. 38766/15\)](#)

The applicants are a Croatian family, Milica Milić, Vera Šumaković, Nada Jurašin and Zoran Milić. They live in Concord, the United States of America (Milica Milić), Dobrinč, Serbia (Nada Jurašin and Zoran Milić), and Belgrade (Vera Šumaković).

The case concerns their complaint that the Croatian authorities have not carried out a proper investigation into the death of their relative, P.M., born in 1942, respectively the first applicant's husband and the other applicants' father.

P.M. was killed in August 1995 during a Croatian army operation to retake the Krajina area. The applicants allege that he was killed outside his own house and was unarmed while the Government states that he was armed and was killed in an exchange of fire. An investigation into his death was begun in September 2005 and was ultimately closed in 2015 with no charges being brought. A claim for damages by the family was also unsuccessful.

The applicants rely in particular on Article 2 (right to life) in their complaint.

[Szpiner v. France \(no. 2316/15\)](#)

The applicant, Mr Francis Szpiner, is a French national who was born in 1954 and lives in Paris.

Mr Szpiner is a lawyer who acted at a trial for the family of I.H., a young man of 23 who was abducted, confined and tortured by a group called the "gang of barbarians" in 2006, before dying from his injuries. During the trial the prosecution was represented by principal prosecutor B. In a newspaper article published just after the trial, Mr Szpiner, having referred to the fact that B.'s father had been a Nazi collaborator, described B. as "genetically a traitor" (*traître génétique*). Disciplinary proceedings were brought against him on that basis.

Relying on Articles 6 (right to a fair hearing) and 7 (no punishment without law) taken together, and on Article 10 (freedom of expression), the applicant complains about the disciplinary penalty imposed on him.

[Bikas v. Germany \(no. 76607/13\)](#)

The applicant, Konstantinos Bikas, is a Greek national who was born in 1958 and lives in Leipzig (Germany).

The case concerns Mr Bikas's conviction for sexual offences.

Mr Bikas was convicted in July 2012 of four counts of coercion to engage in sexual activity. He was sentenced to six years in prison after the court took into account 50 similar incidents as an aggravating factor although proceedings on them had been discontinued. The trial court said it was convinced that he was guilty of those other acts. In 2013 the Federal Court of Justice dismissed an appeal by Mr Bikas and the Federal Constitutional Court refused to admit a constitutional complaint.

Relying on Article 6 § 2 (presumption of innocence), Mr Bikas complains that he was given a more severe prison sentence because the trial court took account of offences of which he had not been found guilty as well as those of which he was convicted.

[Just Satisfaction](#)

[Mitzinger v. Germany \(no. 29762/10\)](#)

The case concerns the question of just satisfaction with regard to Ms Mitzinger's inability to assert her inheritance rights as a child born outside marriage.

In its [principal judgment](#) of 9 February 2017 the Court held that there had been a violation of Article 14 (prohibition of discrimination) of the European Convention on Human Rights taken in conjunction with Article 8 (right to respect for private and family life).

The Court further held that the question of just satisfaction was not ready for decision and reserved it for examination at a later date.

The Court will deal with this question in its judgment of 25 January 2018.

[J.R. and Others v. Greece \(no. 22696/16\)](#)

The applicants, J.R., N.R. and A.M.R., are Afghan nationals who were born in 1990, 1994 and 1989. They arrived on the island of Chios (Greece) on 21 March 2016, after the entry into force of the "EU-Turkey Declaration" (agreement between the member States of the European Union and Turkey concerning the return, under certain conditions, of irregular migrants from Greece to Turkey).

The case concerns the placing of the three applicants, together with the two minor children of N.R., in the "hotspot" known as the "VIAL centre" (migrant reception, identification and registration centre in a disused factory, VIAL being its acronym).

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicants complain about the conditions of their detention in the centre. Under Article 5 §§ 1 and 2 (right to liberty and security / right to be informed promptly of the charge), they complain about their detention, which they regard as arbitrary, and its duration. They also allege that they did not receive any information about the reasons for their detention. Lastly, J.R. also relies on Article 34 (right of individual application).

[Sidiropoulos and Papakostas v. Greece \(no. 33349/10\)](#)

The applicants, Georgios Sidiropoulos and Ioannis Papakostas, are Greek nationals who were born in 1985 and 1982. They live in Aspropyrgos (Greece).

The case concerns criminal proceedings leading to the conviction of a police officer for torturing Mr Sidiropoulos and Mr Papakostas to make them confess. The policeman was given a prison sentence for torture; the sentence was later commuted to a fine of five euros per day of detention.

Relying on Articles 3 (prohibition of torture and inhuman or degrading treatment), 6 § 1 (right to a fair hearing within a reasonable time) and 13 (right to an effective remedy), Mr Sidiropoulos and Mr Papakostas complain about the sanction imposed on the offender, the length of the criminal proceedings and the lack of an effective remedy.

Revision

Zherdev v. Ukraine (no. 34015/07)

The case concerns a request for the revision of a judgment of the European Court of Human Rights with regard to various complaints by Artyom Zherdev concerning the period between 2005 and 2009. His allegations included police ill-treatment to extract a confession and that his pre-trial detention was unlawful and unreasonably long.

In a [judgment](#) delivered on 27 April 2017, the Court held that there had been violations of Article 3 (prohibition of degrading treatment), Article 5 § 1 (c) (right to liberty and security), and Article 5 § 3 (entitlement to trial within a reasonable time or to release pending trial) and awarded him 8,000 euros (EUR) for non-pecuniary damage and EUR 2,150 for costs and expenses.

On 11 July 2017 Mr Zherdev's representative informed the Court that Mr Zherdev had died on 15 June 2016 and requested a revision of the judgment under the Court's Rules. The representative requested that the sums due to Mr Zherdev be paid to his only heirs, his parents.

The Court will consider this request in its judgment of 25 January 2018.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tagiyev v. Azerbaijan (no. 55067/07)

Ilarion Krushev v. Bulgaria (no. 8389/10)

Bárdi and Vidovics v. Hungary (nos. 27514/15 and 13876/16)

Aktaş v. Turkey (no. 9054/13)

Gavrylova and Others v. Ukraine (nos. 1227/06, 36032/06, 35857/06, 36727/06, 37227/06, 32581/12, 32821/12, 32982/12, 33094/12, 33103/12, and 33145/12)

Sevryukov v. Ukraine (no. 50737/09)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.